

26NNCV03624 26NNCV03624

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Case Number: 26NNCV03624 Hearing Date: September 22, 2026 Dept: P

[TENTATIVE] ORDER GRANTING PLAINTIFF'S MOTION TO COMPEL FURTHER REQUEST FOR PRODUCTION, SET ONE

I. INTRODUCTION

This is a lemon law action arising from Plaintiff Jordan John Bello ("Plaintiff") 2025 BMW 330i (the "Subject Vehicle"). Plaintiff alleges that the Subject Vehicle suffered from defect covered by Defendant BMW of North America, LLC's ("Defendant") warranty and asserts claims under the Song-Beverly Consumer Warranty Act.

On May 7, 2026, Plaintiff filed instant action. On June 8, 2026, Defendant filed an Answer.

On August 20, 2026, Plaintiff filed the instant motion to compel further responses to Requests for Production ("RFP"), Set One. On September 9, 2026, Defendant filed an opposition, and on September 15, 2026, Plaintiff filed a reply.

Meet and confer

A motion to compel further discovery responses must be accompanied by a meet and confer declaration stating, "facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (Code Civ. Proc. §§ 2031.310, subd. (b)(2); 2016.040.)

Plaintiff states that on July 30, 2026, counsel emailed Defendant requesting availability to meet and confer by telephone regarding Defendant's discovery responses, but Defendant did not provide any availability. Plaintiff renewed the request on August 17, 2026, without response. (Motion, pp. 3-4.)

Defendant argues Plaintiff failed to adequately meet and confer because counsel sent only two emails and filed the motion on August 20, 2026, three days after the second email. (Opposition, p.2.)

The Court finds meet and confer efforts sufficient. Thus, the Court declines to deny the motion on this basis.

II. LEGAL STANDARD

A motion to compel further responses to a demand for inspection or production of documents (“RFP”) may be brought based on: (1) incomplete statements of compliance; (2) inadequate, evasive or incomplete claims of inability to comply; or (3) unmerited or overly generalized objections. (Code Civ. Proc., § 2031.310(c).)

A motion to compel a further response to interrogatories or production of documents must be noticed within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing. (Cal. Code of Civ. Proc. §§ 2030.300(c), 2031.310(c); see also *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1409; *Vidal Sassoon, Inc. v. Superior Court* (1983) 147 Cal.App.3d 681, 685.) Otherwise, the propounding party waives any right to compel further responses. (Id.) The 45-day time limit is mandatory and jurisdictional. (*Sexton*, supra, 58 Cal. App. 4th at 1410.)

An unverified response is tantamount to no response at all. (See *Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636.) However, objections to interrogatories and requests for production are not required to be verified because “objections are legal conclusions interposed by counsel, not factual assertions by a party.” (*Blue Ridge Insurance Co. v. Superior Court* (1988) 202 Cal.App.3d 339, 345.)

III. ANALYSIS

Plaintiff moves for an order compelling a further response to RFP, Set One, specifically RFP, No. 30 and striking Defendant’s objections. RFP No. 30 seeks:

“All DOCUMENTS, in the form of a list or compilation, of other Customer Complaints in YOUR electronically stored information or database(s) that are SUBSTANTIALLY SIMILAR to complaints made by Plaintiff with respect to the SUBJECT VEHICLE in other 2025 BMW 330i vehicles.” (SS, p. 15.)

The request defines “substantially similar” as complaints concerning the same reported system, malfunction, trouble code, Technical Service Bulletin recommendation, dashboard indicator light, or other manifestation of a repair problem reflected in the warranty summary or repair orders for the Subject Vehicle. (Ibid.) Defendant objected that the request is vague, ambiguous, unintelligible, overly broad, and unduly burdensome. (SS, pp. 2-3, 5-6.)

In opposition, Defendant argues that RFP No. 30 is facially overbroad and that the parties could have resolved the dispute by agreeing upon appropriate search terms. Defendant maintains that it is willing to agree to search terms tailored to the defects at issue. (SS, p. 6.)

In reply, Plaintiff maintains that the request is reasonably particularized and is not vague or ambiguous. Plaintiff further argues that he expressly offered to meet and confer regarding search terms if BMW was uncertain as to the defects at issue, but BMW declined that opportunity and instead refused to provide a substantive response. (Reply, p. 2.)

The Court finds that Plaintiff has demonstrated good cause for the discovery sought and that RFP No. 30 is neither overbroad nor vague. Thus, the Court compels a further response. However, given the parties’ stated willingness to discuss appropriate search terms, the Court orders the parties to meet and confer regarding reasonable search terms to further narrow the scope of the production and facilitate the discovery process.

Thus, the Court GRANTS Plaintiff’s motion to compel further responses to RFP, Set One.

IV. CONCLUSION & ORDER

The Court GRANTS Plaintiff's motion to compel further responses to RFP, Set One. Defendant shall produce responsive documents within 30 days' notice of this order.

Dated: September 22, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT